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Case Number: 24SMCV04968 Hearing Date: June 30, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

DAVID W. KAY,

Plaintiff,

v.

ICON COMMUNITY ASSOCIATION, et

al.,

Defendants.

Case No.:

25SMCV02656

Hearing Date: 06/30/26

Trial Date:

07/24/28

[TENTATIVE] RULING RE:

MOTION FOR SUMMARY JUDGMENT

Background

Plaintiff

is the owner of real property known as 13060 Discovery Creek, Playa Vista, CA 90094 (the "Property"). Plaintiff

alleges Defendant Icon Community Association (the "HOA") is the homeowner's association responsible for making repairs to common areas in the community where the Property is located. Plaintiff

alleges he has reported multiple violations of the Covenants Conditions and Restrictions ("CC&Rs") that govern the community, including improper use of the fire lanes. Plaintiff alleges that

under Article XII, Section 12.1.6 of the CC&Rs, any owner may enforce the CC&Rs and has the right of action against the HOA for failing to comply with the CC&Rs.

On May 23, 2025, Plaintiff filed a complaint against the HOA alleging (1) breach of the CC&Rs; and (2) private nuisance.

On April 6, 2026, Defendant HOA filed the instant Motion for Summary Judgment. On June 10, 2026, Plaintiff filed an opposition to the Motion. On June 18, 2026, Defendant filed a reply.

Motion for Summary Judgment Standard

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826,

843.) "Code of Civil Procedure section

437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code of Civ. Proc., § 437c, subd. (p)(2).) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code of Civ. Proc., § 437c, subd. (c).)

Analysis

Defendant’s Separate Statement complies with California Rules of Court Rule 3.1350

Plaintiff argues that Defendant’s Separate Statement fails to segregate material facts by cause of action as required under Rule 3.1350 subdivision (b), which applies to motions for summary adjudication. However, Defendant is not moving for summary adjudication. Defendant is moving for summary judgment. Defendant is not required to comply with Rule 3.1350 subdivision (b). Plaintiff’s objection to Defendant’s Separate Statement is overruled.

Defendant's

argument that Plaintiff's Responsive Separate Statement is defective is also overruled. Defendant argues Plaintiff improperly uses the Responsive Separate Statement as an opportunity to make additional legal arguments rather than disputing the material fact and setting forth supporting evidence. Plaintiff's Responsive Separate Statement complies with Rule 3.1350. The insertion of argument does not render it procedurally improper. Plaintiff's states whether a fact is disputed or undisputed and why. Defendant's objection is overruled.

First

Cause of Action for Breach of CC&Rs

"A

cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1173.)

"Where a

duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas, courts should defer to the board's authority and presumed expertise. Thus, we adopt today for California courts a rule of judicial deference to community association board decisionmaking that applies, regardless of an association's corporate status, when owners in common interest developments seek to litigate ordinary maintenance decisions entrusted to the discretion of their associations' boards of directors." (Lamden v. La Jolla Shores Clubdominium Homeowners Assn. (1999) 21 Cal.4th 249, 253 (board's decision to use secondary, rather than primary, treatment in addressing the development's termite problem was subject to deferential review, reversing Court of Appeals' reversal of judgment in HOA's favor).)

"Based on

Lamden, Haley, Harvey, Watts, and Dolan-King,

the judicial deference rule applies to an association board's discretionary decisions concerning the operation of the common interest development, e.g., the board's maintenance and repair decisions (Lamden), its selection of the appropriate means to remedy a violation of the CC&Rs (Haley), its designation of storage space in a common area (Harvey), its adoption of rules relating to short-term rentals (Watts), or its approval or rejection of a homeowner's improvement plan (Dolan-King). As we observed in Watts, 'Common interest developments are best operated by the board of directors, not the courts.'" (Eith v. Ketelhut (2018) 31 Cal.App.5th 1, 16.)

Plaintiff

alleges Defendant HOA breached Article IV, Section 4.2.6 of the CC&Rs when it failed to take any action in response to his complaints regarding improper use of fire lanes in the community.

(Complaint, ¶25.) Plaintiff

alleges numerous prohibited activities were taking place in the fire lanes that violated the CC&Rs. (Id.) Plaintiff seeks an injunction ordering the HOA to enforce the guidelines and ensure the prohibited conduct occurring the fire lanes ceases. (Id. at ¶26.)

Defendant

HOA moves for summary judgment on grounds that it exercised its discretion in responding to Plaintiff's complaints of alleged violations of the CC&Rs. Defendant argues it has discretion to enforce the CC&Rs.

Defendant argues Plaintiff admittedly has used the fire lane as an area to load and unload in violation of the Los Angeles Fire Code. Defendant argues it exercised its discretion not to enforce the fire code provision against him. Defendant argues it therefore maintains a standardized procedure applicable to all members of the community and Plaintiff cannot claim arbitrary, discriminatory or unequal enforcement of governing rules.

Defendant

fails to establish entitlement to the presumption of judicial deference articulated in Lamden. The

judicial deference rule articulated in Lamden is an affirmative defense. (Affan v. Portofino Cove

Homeowners Assn. (2010) 189 Cal.App.4th 930, 940.) "Thus, the defendant has the burden of establishing the requisite elements for applying the rule." (Id.)

Lamden

stated that a rule of judicial deference

to an HOA's discretionary decisionmaking applies, "[w]here a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises that discretion...." (Lamden,

supra, 21 Cal.4th at 253.) "It is

important to note the narrow scope of the Lamden rule. It is a rule of

deference to the reasoned decisionmaking of homeowners association

boards concerning ordinary maintenance. It does not create a blanket immunity

for all the decisions and actions of a homeowners association." (Affan, supra, 189 Cal.App.4th at 940.)

Defendant's

separate statement includes fourteen material facts. Eleven of those material facts pertain to

Plaintiff's use of the fire lanes, the HOA's response to his use of the fire

lane, Plaintiff's admission that he did not observe any fraudulent activity by

the Board, Plaintiff's lack of damages or injury and Plaintiff's admission that

he has violated the CC&Rs.

(Defendants' SSUMF Nos. 4-14.) Defendant's

remaining three material facts are (1) Plaintiff is owner of the Property; (2)

the HOA is governed by the CC&Rs; and (3) the HOA's discretion to enforce

the CC&Rs provisions at its discretion.

(Defendants' SSUMF Nos. 1-3.)

None

of these facts establish Defendant's reasoned decisionmaking in response to each

of Plaintiff's specific complaints regarding improper use of the fire lane. (Affan, supra, 189 Cal.App.4th

at 943 ("key prerequisites" of Lamden rule not met where HOA failed to

present any evidence of a "reasonable investigation" prior to decision or

evidence that it acted "in good faith and with regard for the best interest of

the community association and its members because no one testified about the

board's decisionmaking process").)

The mere fact that Defendant has not enforced the CC&Rs against

Plaintiff does not establish as an issue of law that Defendant exercised its

discretion reasonably in response to Plaintiff's complaints. In fact, Defendant does not make any showing regarding

its response to Plaintiff's complaints of improper use of the fire lane. The Court cannot find the judicial deference

rule under Lamden applies as an issue of law where Defendant makes no

showing as its response to Plaintiff's complaints or how it decided on that

response.

In

addition, Defendant's cites to pages 6, 31 and 32 of the CC&Rs in support of its SSUMF No. 3, "The Association has discretion to enforce certain provisions of the Association's governing documents." (Defendant's SSUMF No. 3; Shahinfar Dec., ¶7, Ex. D, pp. 6, 31-32.) A review of the highlighted portions of those pages do not vest the HOA with "discretion to enforce certain provisions of the CC&Rs."

The highlighted clauses creates general and specific duties and powers of the HOA. There is no reference to whether enforcement is discretionary or mandatory.

More

fundamentally, Defendant fails to provide evidence of how enforcement of fire lane usage is treated under the CC&Rs.

Defendant only submits excerpts of the CC&Rs and fails to identify what clause or provision thereof governs enforcement of fire lane use. As acknowledged by both parties, improper use of a fire lane would qualify as a violation of the Los Angeles City Fire Code. The portions of the CC&Rs submitted by Defendant do not address how legal violations such as improper use of fire lanes are treated or the HOA's obligation under the CC&Rs to ensure that the community complies with applicable laws and regulations.

On

a motion for summary judgment, the moving party's evidence is construed strictly while the opposing party's evidence is construed liberally. (Government Employees Ins. Co. v. Sup. Ct. (2000) 79 Cal.App.4th 95, 100.) "All doubts as to the propriety of granting the motion (whether there is any issue of material fact [Code of Civil Procedure] § 437c) are to be resolved in favor of the party opposing the motion (i.e., a denial of summary judgment)." (Hamburg v. Wal-Mart Stores, Inc. (2004) 116 Cal.App.4th 497, 502.) Applying this standard, Defendant fails to establish each element of its affirmative defense based on the Lamden rule of judicial deference. Triable issues of fact remain as to the first cause of action for breach of the CC&Rs.

Defendant

only moved for summary judgment.

Defendant did not move for summary adjudication. The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to

any material fact and that the moving party is entitled to a judgment as a matter of law. Because triable issues of material fact remain as to the first cause of action for breach of CC&Rs, the motion for summary judgment is DENIED.

Second

Cause of Action for Private Nuisance

For

the reasons stated above, the Court need not address the second cause of action. Triable issues of material fact remain as to the first cause of action, which requires denial of the motion for summary judgment.

Conclusion

Defendant's

Motion for Summary Judgment is DENIED.

Dated: June 30, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court